

24PDUD03208 24PDUD03208

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-07

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Case Number: 24PDUD03208 Hearing Date: July 7, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION FOR ATTORNEYS' FEES

I. INTRODUCTION

This matter arises from an unlawful detainer action concerning residential property located at 840 E. Green Street, Unit 122, Pasadena, California. Plaintiff Alana Johnson ("Plaintiff") initiated the underlying action against Defendant Michael Saeedi ("Defendant"), which was voluntarily dismissed on December 19, 2024. Defendant thereafter moved for attorney's fees, and on April 25, 2025, the Court denied the motion.

Defendant appealed, and on March 9, 2026, the Appellate Division affirmed the Court's order denying Defendant's motion for attorney's fees and awarded Plaintiff costs on appeal. Following issuance of the remittitur on May 18, 2026, Plaintiff filed the instant motion seeking \$5,402 in attorney's fees incurred in defending the appeal. Defendant filed an opposition on June 18, 2026, and Plaintiff filed a reply on July 1, 2026.

II. LEGAL STANDARD

A motion seeking attorney fees incurred on appeal under a contract must be served and filed within the time for serving and filing a memorandum of costs following issuance of the remittitur. (Cal. Rules of Court, rule 3.1702(c)(1); rule 8.891(c)(1).) In a limited civil appeal, the prevailing party is the respondent where the Appellate Division affirms the judgment without modification, and the clerk must include the award of costs in the remittitur. (Cal. Rules of Court, rule 8.891(a)(2), (b)(1).)

III. ANALYSIS

Plaintiff moves for an award of \$5,402.00 in attorney fees incurred in successfully defending Defendant's appeal. Plaintiff contends the parties' lease contains a prevailing party attorney fee provision entitling the prevailing party to recover reasonable attorney fees in any action arising out of the agreement. Plaintiff further argues that because contractually authorized attorney fees are recoverable as costs, such fees may be sought in the trial court following issuance of the remittitur. Plaintiff also notes the Appellate Division affirmed the trial court's order, awarded Plaintiff costs on appeal, and the remittitur issued on May 18, 2026.

Plaintiff further contends the requested fees are reasonable under the lodestar method. Plaintiff submits declarations from Harold Greenberg and Jenifer Anisman stating that counsel expended 9.6 hours defending the appeal and anticipate an additional 2.0 hours preparing a reply and appearing at the hearing. Counsel declare that Mr. Greenberg's hourly rate was \$495 in 2025 and \$505 in 2026, while Ms. Anisman's hourly rate was \$445 through January 31, 2026, and \$465 thereafter.

Based on these hours and rates, Plaintiff seeks a total award of \$5,402.00 in appellate attorney fees. (Greenberg Decl., ¶¶ 2-10.)

Defendant opposes the motion, arguing Plaintiff is not entitled to recover appellate attorney fees because the lease agreement bars recovery where a party refuses to participate in mediation after a request is made. (Opposition, pp. 5-6.) Defendant contends Plaintiff rejected multiple pre-litigation requests for mediation and therefore forfeited any contractual right to attorney fees under paragraph 39A of the lease. Defendant further argues Plaintiff failed to establish that the requested fees were reasonably and necessarily incurred because Plaintiff did not file a respondent's brief, performed only limited work during the appeal, and submitted heavily redacted billing records that allegedly prevent meaningful review of the requested fees. (Opposition, pp.7-8.) Alternatively, Defendant requests that any fee award be substantially reduced. (Id. at 10.)

The Court finds Plaintiff is entitled to recover reasonable appellate attorney fees. The parties' lease contains a prevailing party attorney fee provision, the Appellate Division affirmed the order denying Defendant's motion for attorney fees, awarded Plaintiff costs on appeal, and the remittitur issued on May 18, 2026. Therefore, Plaintiff is entitled to seek contractual attorney fees incurred on appeal in this Court.

Defendant's reliance on the lease's mediation provision is unavailing. Although Defendant argues Plaintiff forfeited any right to attorney fees by declining pre-litigation mediation, the lease expressly excludes unlawful detainer actions from the mediation requirement. Specifically, Paragraph 39B provides: "The following matters are excluded from mediation: (I) an unlawful detainer action." (See Reply, p. 2; Exh. 4, ¶ 39B.) Thus, the mediation provision does not preclude Plaintiff's recovery to reasonable appellate attorney fees.

The Court further finds the amount requested to be reasonable. Plaintiff submits declarations and billing records establishing that counsel expended 9.6 hours defending the appeal, with an anticipated additional two hours preparing the instant motion and appearing at the hearing, at hourly rates ranging from \$445 to \$505. The Court finds both the hours expended and the hourly rates reasonable. The Court GRANTS Plaintiff's motion for appellate attorney fees in the amount of \$5,402.00.

IV. CONCLUSION

The Court GRANTS Plaintiff's motion for attorneys' fees, and awards \$5,402.00. Defendant is ordered to pay these fees within 60 days of this order.

Plaintiff is to give notice.

Dated: July 7, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT